

MASTER SERVICES AGREEMENT

1. PARTIES AND RECITALS

This Master Services Agreement ('Agreement') is entered into as of January 15, 2024 ('Effective Date') by and between Apex Global Solutions Inc., a Delaware corporation located in San Francisco, CA ('Client'), and Quantum Byte Technologies LLC, a California limited liability company ('Service Provider').

2. TERM AND DURATION

The Term of this Agreement shall commence on the Effective Date (January 15, 2024) and shall expire on January 14, 2025, unless earlier terminated in accordance with the provisions herein. The Agreement shall automatically renew for successive twelve (12) month periods unless either party provides written notice of non-renewal at least sixty (60) days prior to the expiration date.

3. SCOPE OF SERVICES AND COMPENSATION

Service Provider shall provide cloud infrastructure architecture and AI deployment services. Client agrees to pay Service Provider a total fixed fee of \$150,000 USD payable in monthly installments of \$12,500 USD Net 30 days upon invoice receipt.

4. CONFIDENTIALITY OBLIGATIONS

Each party agrees that all software code, customer data, and financial records disclosed shall constitute Confidential Information. Each party shall preserve the secrecy of such information with reasonable care for five (5) years following disclosure.

5. INTELLECTUAL PROPERTY RIGHTS

Client shall own all rights, title, and interest in and to the custom deliverables and work product created by Service Provider under this Agreement. Service Provider retains all rights in its pre-existing tools and background software.

6. TERMINATION FOR CAUSE AND CONVENIENCE

Either party may terminate this Agreement for convenience upon sixty (60) days prior written notice. Either party may terminate immediately if the other party commits a material breach and fails to cure such breach within thirty (30) days of receiving written notification.

7. LIMITATION OF LIABILITY

IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY CONSEQUENTIAL, INDIRECT, SPECIAL, OR PUNITIVE DAMAGES. EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID HEREUNDER IN THE PRECEDING TWELVE MONTHS (\$150,000 USD).

8. INDEMNIFICATION

Service Provider shall indemnify, defend, and hold harmless Client from any third-party claims alleging that the Deliverables infringe any valid patent, copyright, or trademark.

9. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the State of California. Any unresolved dispute shall be submitted to confidential binding arbitration administered by JAMS in San Francisco, California.

10. MISCELLANEOUS PROVISIONS

This Agreement represents the entire agreement between the parties and supersedes all prior proposals, negotiations, and representations.